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Case Name: *Stoner et al. v. Contract Sweeping Services, LLC et al.*
Case No.: 23CV410973

This is class action arising from alleged wage and hour violations, brought by plaintiff Darcel Stoner (“Plaintiff”) against defendant SCA of CA, LLC (“SCA” or “Defendant”).¹ In the operative Second Amended Complaint (“SAC”), filed September 4, 2025, Plaintiff asserts causes of action for: (1) failure to pay prevailing wages; (2) failure to furnish accurate wage statements; (3) failure to provide wages when due; (4) unfair competition; and (5) violations of the Private Attorneys General Act.

Plaintiff’s motion for class certification is now before the Court. Plaintiff moves to certify a class of street sweepers employed by Defendant SCA who performed street sweeping work in California under SCA’s contracts with public entities. The Court has considered the moving, opposition, and reply papers, the supporting and supplemental declarations, the requests for judicial notice and evidentiary objections, the proposed trial plan and responses, and the arguments of counsel. As discussed below, the Court’s tentative ruling is to GRANT the motion for class certification.

I. Background

Plaintiff’s theory of recovery is that SCA’s policy relating to the payment of street sweepers performing work pursuant to contracts with municipalities does not comply with California’s Prevailing Wage Law (Lab. Code §§ 1720 et seq., “CPWL”). (Memorandum, p. 1:6–28.) Plaintiff contends that street-sweeping work should be characterized as within the CPWL’s definition of “maintenance,” thereby subjecting SCA to the requirement of paying prevailing wages for such work. SCA argues that street sweeper operators perform “janitorial or custodial services” as defined by the CPWL, exempting their work from the prevailing wage requirement. (Opposition, p. 7:1-25.)

¹ The action was initially brought by plaintiffs Darcel Stoner and Peter White against defendants Contract Sweeping Services, Inc. (“CSS”) and SCA. On August 28, 2023, the Court granted the plaintiffs’ request to dismiss Plaintiff White’s claims without prejudice. Plaintiff Stoner and CSS subsequently reached a settlement agreement as to the claims against CSS, and on May 21, 2026, the Court granted the motion for preliminary approval of that settlement.